b. The December 2022 email in which I reserved my rights to provide R&D information and explained the adverse impact of HMRC's actions on my health; and
c. My subsequent illness and inability to progress matters, which HMRC was already aware of.

3. Consider use of para 83E(5) discretion, in line with CIRD181000 and SP5/01 by determining that discretion under FA 1998 Sch 18 para 83E(5) should be exercised to receive any additional information required for the 2021 period that was removed when I was too unwell to respond and the admission of a claim related to the 2020 period, with the claims to be examined on their merits. In line with recent changes to R&D credit requirements, I am willing to provide a complete Additional Information Form and any additional technical and cost schedules required. If HMRC is minded to decline using its discretion, please ensure the decision is taken by the appropriate Grade 6 decision-maker and that SP5/01 has been applied per HMRC's current manual.
4. Treat fragmented handling as part of the remedy assessment. Recognise that dealing with the R&D complaint separately and without reference to the Equality Act context has imposed unnecessary additional stress and administrative burden on me as a disabled customer, and reflect this in any assessment of redress and consolatory payment under HMRC's complaints and remedy policy under the Tier 2 complaint. In line with the HMRC Charter, I ask that a single named point of contact is appointed to coordinate responses to ***all*** open issues with HMRC and that reasonable adjustments (including coordinated handling and extra time where needed) are applied consistently.

Outstanding Freedom of Information (FOI) request

My FOI request submitted on 12th October 2025 under the Freedom of Information Act 2000 remains outstanding. Under FOIA s.10(1), HMRC must respond promptly and in any event within 20 working days. If HMRC is relying on an exemption, FOIA s.17(1) requires a refusal notice within the same time limit. As this time limit has expired, please treat this paragraph as a request for an internal review under the section 45 Code of Practice and confirm an internal-review outcome within 20 working days (ICO good-practice timescale). If HMRC considers a longer period necessary due to complexity, please explain why and set a clear date.

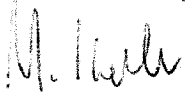
Next steps

I would be grateful if you could:

1. Confirm in writing that the R&D decision is now being considered as part of, or alongside, the Tier 2 review;
2. Confirm that HMRC will use its stated legal powers of discretion to accept and evaluate information related to the 2021 and 2020 R&D claims;
3. Advise what further information you require from me to complete a fair and informed review of the information already submitted for the 2021 claim and new information related to the 2020 claim;
4. If, after reviewing the position, HMRC decides not to exercise any available discretion to allow the 2020 and/or 2021 R&D claims to be examined on their merits, please set out in full the reasons for that decision, including which powers and guidance have been relied upon and how you have taken account of the Equality Act 2010 and HMRC Charter failings already accepted; and
5. Provide the FOI information as requested, or confirm in writing if a longer period is necessary due to complexity, setting out the reasons why with a clear date when the FOI information will be provided in full.
6. Include the stated fragmented handling failures of the R&D Tier 1 evaluation within the Tier 2 complaint, and advise why the R&D Tier 1 review seems to have taken place in a vacuum with no reference or regard to the Equality Act 2010 and Charter failures accepted elsewhere within HMRC.

Given my health and the history already accepted by HMRC, I would also ask that any further contact is coordinated through a single named point of contact, as a reasonable adjustment to avoid repeating the difficulties I have previously faced in this process to date.

Yours faithfully,



Mark Howells

Enclosed:

- R&D Tier 1 review response letter dated 7th November 2025 (0244917/1/Tier 1)
- Main Tier 1 review response letter dated 4th November 2025 (CE/2649010/2025)

HM Revenue & Customs

Customer Compliance Complaints
HM Revenue and Customs
BX9 2AB

Mr Mark Howells
South Farm
Newton Morrell
RICHMOND
North Yorkshire
DL10 6HQ

999H9YBIK00138
017123\330

Phone 03000 581 204

Email ccgmincomcomplaintsteam@hmrc.gov.uk

Web www.gov.uk

Date 7 November 2025
Our Ref 0244917/1/Tier 1

Dear Mr Howells

Thank you for your complaint about your company Konnektis Communications Ltd's (KCL) Research and Development (R&D) claims, which we received from the Rt Hon Rishi Sunak MP on 14 October 2025.

Please note that we will reply to you about our Debt Management Extra Support service and deal with your Subject Access Request and redress request separately.

We operate a two-tier complaints process, and I am considering your complaint at tier one. Further information can be found online at www.gov.uk/complain-about-hmrc.

Your Complaint

You say that we were made aware by your agent of your health concerns from June 2022, which affected your ability to meet tax obligations. The agent requested additional time for you to submit your 2020 R&D claim, which we did not respond to. You say your company have applied for and been granted R&D claims before.

You are also unhappy that we rejected your R&D claim for 2021 in November 2022. We sent you a letter saying it was flagged as potentially fraudulent but that you could contest it.

You believe we did not take your mental and physical health into consideration, and that the aggressive nature of our letter had a significant detrimental impact on you. You ask that we review your R&D claims.

My Role

As a Complaint Investigator, it is my responsibility to examine the handling of our compliance activities to ensure that we have acted within the relevant legislation and in accordance with our instructions and guidance, including customer service levels.

I cannot decide matters where a clear right of appeal exists. Nor can I intervene in any technical issues or dictate what actions a business unit must take, as this is their decision.

My Decision

I have investigated your concerns, and I cannot uphold your complaint regarding you R&D claims for KCL. I understand this may be disappointing for you. I will explain my reasoning below.

My Consideration

I am sorry to hear that you have been unwell and that we did not reply to yours and your agent's correspondence about the company's R&D claims.

We received KCL's Corporation Tax (CT) return for the period ending 31 March 2020 on 10 December 2020, which did not include a claim for R&D tax relief. On 1 July 2022, we received a letter from your agent which said that you were unwell and asked if we would extend the deadline for a R&D claim for the above period. We should have responded to say that we cannot extend a statutory deadline.

On 10 October 2022, we received KCL's amended CT return for a later period ending 31 March 2021, which included an R&D tax credit claim of £22,188.19. We wrote to KCL on 10 November 2022 to say that we had blocked payment as we believed the claim may be potentially fraudulent. We asked your company to send us more information by 10 December 2022. We said that we would remove the R&D claim if we did not receive the information, under the provisions of Schedule 18, Paragraph 16 (4) of the Finance Act 1998.

On 9 December 2022, you told us that you reserved the right to provide more information until 31 March 2023. As we did not receive the information we asked for in our letter of 10 November, we amended the return to remove the R&D claim. We advised KCL about this on 10 December 2022. We said you could amend the return and resubmit an R&D claim if you disagreed. We did not receive an amended return.

CT, and R&D claims as part of it, are self-assessed, and businesses are responsible for the accuracy of their submissions. We may check CT returns, and the R&D claims within them, to make sure that any relief or claim for a credit is due. The absence of an enquiry in previous years or payment of a tax credit does not mean that we have approved the claims.

Concern over non-compliance in R&D tax reliefs has grown in recent years and we need to make sure that companies who are eligible for these reliefs can access them while protecting customers money from ineligible claims.

In October 2024, we published an update to our approach to R&D tax reliefs setting out our analysis of the scale and shape of non-compliance in R&D tax relief claims in recent years. You can find more information about our current approach to R&D tax reliefs at: www.gov.uk/government/publications/hmrcs-approach-to-research-and-development-tax-reliefs-2023-to-2024/approach-to-research-and-development-tax-reliefs-2023-to-2024.

The time limit for submitting an R&D tax relief claim mirrors the time limit for submitting a CT return. Companies should submit their claim within 12 months following the end of the accounting period and make any amendments within a further 12 months. Claims outside of these timescales are deemed to be out of time. You can find more information about this at www.gov.uk/hmrc-internal-manuals/company-taxation-manual/ctm93330.

Our Statement of Practice SP5/01 outlines how we handle late claims. Paragraph 83E (2) Schedule 18 of the Finance Act 1998 sets out our discretionary power to look at late claims; for example, when a company makes a late claim for reasons outside of their control. Please be aware that our discretionary powers in these circumstances are limited.

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You can still send us a late claim for R&D for both periods if you wish. You can see more about the late claims process and our approach at: www.gov.uk/government/publications/statement-of-practice-5-2001/statement-of-practice-5-2001.

Conclusion

This concludes my investigation of your complaint.

If you disagree with the outcome of this investigation, you can ask for your complaint to be looked at a second time. This is called a tier two complaint and involves a different investigator considering the information you have provided; however, it is not guaranteed there will be a different outcome.

If you wish to have your complaint investigated again, you can:

- contact us online, go to www.gov.uk and search for "Complain about HMRC"
- or write to me at the above address.

Data Protection

Please go to www.gov.uk and search 'HMRC Privacy Notice' for further details about how we collect, use, protect and secure your personal information. Your feedback will help us to improve further customer interactions. We will keep your responses securely and they will never affect your dealings with HMRC.

Please note that our new address is Customer Compliance Complaints, HM Revenue and Customs, BX9 2AB. If you write to us but do not use this address then we may not get your post.

Yours sincerely

Christopher Munroe
Ministerial Complaint Investigator

Join the millions of taxpayers already using their Personal Tax Account to access a range of services. It takes just a few minutes to get started, go to www.gov.uk/personal-tax-account Or you can use the HMRC app.

To find out about the service and standard of behaviour you can expect from us, go to GOV.UK and search 'HMRC Charter'.

HM Revenue
& Customs

HM Revenue and Customs
Business and Specialist Tax
BX9 1AB

Mr Mark Howells
South Farm
Newton Morrell
North Yorkshire
DL10 6HQ

Phone: 0300 322 9117
Monday to Thursday 8.30am to 5.00pm
Friday 8.30am to 4.30pm

Web: www.gov.uk

Date 4 November 2025
Our Ref CE/2649010/2025

Dear Mr Howells

Your complaint response

Thank you for your letter dated 12 October 2025 to the Chief Executive about Leconfield Strategic Solutions Limited. I have been asked, as Complaints Investigation Manager for Business and Specialist Taxes to reply to you.

You will receive a separate reply regarding your complaint for Konnektis Communications Limited.

I am sorry for the difficulties you have experienced with our Extra Support Team Debt Management (ESTDM). We appreciate you bringing these matters to our attention and welcome the opportunity to respond to the concerns raised.

We have received your complaint from your MP dated 14 October 2025. We will write to them separately to advise that we have responded to you directly. This ensures you get a response as soon as possible.

My role

I am a Complaint Investigation Manager. I have carried out an impartial investigation into your complaint. I have considered what you have told us and the concerns you have raised.

I have used the information we have on your records to help me investigate what happened. That information included earlier correspondence.

I have also considered your personal situation when making my decision.

My investigation

If you need extra support, for example if you have a disability, a mental health condition, or do not speak English/Welsh, go to www.gov.uk and search for 'get help from HMRC'.
Text Relay service prefix number – 18001

We sincerely regret the difficulties you have encountered and acknowledge that the service provided fell short of the standards expected under the HMRC Charter and the Equality Act 2010. Please find below our response to each of the points raised:

Equality Act 2010 and HMRC Charter Compliance
We recognise that we have obligations under the Equality Act 2010 and the HMRC Charter to make reasonable adjustments and treat customers fairly. We accept that we did not fully meet these in your case. We are implementing additional training for ESTDM to ensure compliance with these requirements and prevent recurrence.

Impact on Health and Wellbeing
We acknowledge the significant impact our failures have had on your mental health and wellbeing, as described in your complaint. We deeply regret this and will ensure that we handle future interactions with sensitivity. We can also provide signposting to external support services if required.

Extra Support Team Failures
We confirm that the breakdown in continuity, lack of handover, and failure to use agreed communication channels were unacceptable

1. Failure in Extra Support Team Processes & Lack of Communication
While it is not standard practice to assign a Single Point of Contact (SPOC) for every customer due to the volume of cases we manage, we do allocate one in specific circumstances or upon request. We did assign a SPOC to you previously; however, due to the unavailability of Mr Burnell from January 2025, the case should have been handed over to another team member. We apologise that this did not occur and acknowledge the breakdown in communication. We are reviewing our handover procedures to prevent recurrence.

Please note, the contact number to reach ESTDM is 0300 322 7026, which the team issue on all correspondence.

2. Current Case Ownership
We have now reassigned your case to Ellis Thomas, who will act as your new SPOC. Mr Thomas will move the case to ESTDM and will contact you this week (week commencing 3 November 2025) to introduce himself and discuss next steps.

3. Correspondence Address
We have reviewed your records and found that the VAT registered office address was previously listed for correspondence. We have now updated the relevant systems to reflect your home address, and we will endeavour to ensure all future correspondence is issued accordingly.

4. Apology & Steps to Prevent Recurrence
We acknowledge the shortcomings in your experience and offer our sincere apologies. ESTDM has implemented a new process to ensure that we proactively pick up cases in similar circumstances, and we maintain that continuity of support.

5. Mr Burnell's Absence & Lack of Handover
While we cannot disclose personal details regarding Mr Burnell's absence, we accept that your case should have been handed over. We also recognise that we should have provided you with ESTDM's contact number in addition to Mr Burnell's direct line. We apologise for this oversight and are taking steps to ensure better continuity in future.

6. SPOC Denial by Mr Khan
Mr Khan was relatively new to the team at the time you spoke with him and he may not have been aware that assigning a SPOC is a reasonable and possible request. We have now ensured that we fully brief all team members on this option to prevent similar misunderstandings.

7.2022 Correspondence & Appeals
The matters raised from 2022 predate the involvement of ESTDM, and we are therefore unable to comment directly. However, if you wish to pursue this further, we can refer the matter to the appropriate department for review.

8.Use of Mobile Number
If your mobile number is on record, we should have used it for contact. We will use the number you have provided on his letter to make future contact. We will ensure we correctly record this for future communications.

9.Letter Sent to Incorrect Address
The letter from ESTDM was issued to the address on record at the time. We regret that this was not your preferred address and acknowledge that further follow-up should have occurred. We are reviewing our procedures to improve how we manage address updates and follow-up communications.
We are committed to learning from this and improving our service. Please accept our apologies once again for the inconvenience caused to yourself.

R&D Tax Claims
We acknowledge your concerns regarding the 2020 and 2021 R&D Tax Claims for Konnektis Communications Limited. While these matters predate ESTDM involvement, we have referred them to the Corporation Tax R&D Unit Compliance Complaints Unit for urgent review. You will receive a separate update/reply to this letter.

Formal Apology and Preventative Measures
We apologise unreservedly for the failures in your case. To prevent recurrence, HMRC has:

- Introduced enhanced training on reasonable adjustments and mental health awareness.
- Implemented stricter monitoring of ESTDM case continuity.
- Updated guidance to ensure SPOC allocation is clear and consistent.

Subject Access Request
We acknowledge your request for disclosure under the Freedom of Information (FOI) Act and Data Protection Act. We process FOI requests separately, and Mr Howells will receive confirmation within statutory timelines.

Financial Redress
You have asked for redress regarding this matter.
We will make a payment of £250 due to our poor handling of Mr Howells case with ESTDM. We will also make a further payment of £250 for additional worry and distress this has caused to Mr Howells.

As these payments are issued using Bacs, we need to make an electronic payment directly to your bank account. Electronic payments are quicker and more secure. We need the:

- bank sort code
- bank account number
- account name

For security reasons, please **do not** email these details. You can write to us at HM Revenue and Customs, Business and Specialist Tax Complaints, BX9 1AB with this information. Alternatively, you can call us on 0300 322 9117.

Next steps

We have reviewed your complaint under the first tier of our two-tier complaints process. If you feel that we have not dealt with your complaint fully or correctly, you can ask us to look at it again. You should go to www.gov.uk and search for 'Complain about HMRC' where you can find more information about our complaint process. You can write to us at Tier 2

Complaints Service, HM Revenue and Customs, BX9 1AB, quoting reference CHART customer ID 0244870.

Data Protection

For further details about how we collect, use, protect and secure your personal information, please go to GOV.UK and search 'HMRC Privacy notice'.

Yours sincerely

Theresa Barlow
Complaints Investigation Manager

To find out about the service and standard of behaviour you can expect from us, go to www.gov.uk and search 'HMRC Charter'.